

5 August 2025 / lhg

29534/ICA3



ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

Counsel: Ms Hjördis Birna Hjartardóttir

(Tel: + 33 1 49 53 28 83)

Deputy Counsel: Ms Mihaela Tarnovschi

(Tel: + 33 1 49 53 30 29)

(Email: ica3@iccwbo.org)

Harish Narasappa
Sudipta Routh
Pooja Dadoo
Malika Nanduru
Advait Balekundri
LUTHRA AND LUTHRA LAW OFFICES
INDIA

srouth@luthra.com
pdadoo@luthra.com
mnanduru@luthra.com
abalekundri@luthra.com
By ICC Case Connect

Filip Boras
Markus Schwaiger
Richard Molesworth
Paula Kampits
Stephanie Rohmann
BAKER MCKENZIE RECHTSANWALTE
LLP & CO KG

filip.boras@bakermckenzie.com
markus.schwaiger@bakermckenzie.com
richard.molesworth@bakermckenzie.com
paula.kampits@bakermckenzie.com
stephanie.rohmann@bakermckenzie.com
By ICC Case Connect

Dear Mesdames and Sirs,

The Secretariat of the ICC International Court of Arbitration (“Secretariat”) acknowledges receipt of Respondent’s Answer to the Request for Arbitration (“Answer”) dated 4 August 2025, and of the documents annexed thereto.

Answer

A copy of the Answer (Article 5(1)) was sent directly to Claimant (Article 5(4)).

Constitution of the Arbitral Tribunal

The arbitration agreement provides for one arbitrator.

As the parties have not agreed to a three-member arbitral tribunal and have not nominated the sole arbitrator, the Court will appoint the sole arbitrator (Article 12(3)).

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

[iccwbo.org/arbitration](https://www.iccwbo.org/arbitration)

Paris

33 avenue du Président Wilson
75116 Paris, France
+33 (0)1 49 53 28 28 arb@iccwbo.org

New York

in affiliation with Sicana, Inc.
140 East 45th Street, Suite 14C
New York, NY 10017, USA
+1 646 699 5704 ica9@iccwbo.org

Singapore

in affiliation with SICAS
28 Maxwell Road #02-01, Maxwell Chambers
Suites, Singapore 069120
+65 6983 5580 ica11@iccwbo.org

Hong Kong

Room 102, 1/F., West Wing, Justice Place,
11 Ice House Street, Central, Hong Kong
+852 3954 9504 ica8@iccwbo.org

Sao Paulo

in affiliation with SCIAB LTDA.
rua Surubim, 504, Brooklin Novo
CEP 04571-050, Sao Paulo, Brazil
+55 11 3040 8830 ica10@iccwbo.org

Abu Dhabi

ADGM Square, Level 20, Al Maqam Tower
Al Maryah Island, P.O. Box 111999
Abu Dhabi, United Arab Emirates
+971 56 333 2781 ica12@iccwbo.org

Effect of the Arbitration Agreement

Respondents raised pleas pursuant to Article 6(3). Such pleas will be decided directly by the arbitral tribunal, after providing the parties with an opportunity to comment (Article 6(3)).

The Secretariat notes that “*Respondents request the ICC Arbitral Tribunal to decline jurisdiction over Claimant's claims*”.

Place of Arbitration

The arbitration agreement provides in relevant part that “*the seat of arbitration shall be Paris*”.

Language of Arbitration

The arbitration agreement provides for English as language of arbitration.

Amount in Dispute

The amount in dispute is estimated at US\$ 4 636 690 (*i.e.*, EUR 4 100 000 for the partially quantified principal claims). We enclose a table on the financial aspect of the arbitration (“Financial Table”).

Provisional Advance

As the provisional advance has been fully paid, we will transmit the file to the arbitral tribunal, once constituted (Article 16)

Representation by Counsel

We understand that Respondent is represented by BAKER MCKENZIE. Accordingly, all future correspondence addressed to Respondent will be sent solely to its counsel.

Each party must promptly inform the Secretariat, the arbitral tribunal and the other parties of any changes in its representation (Article 17).

Communication with the Secretariat

We remind you that your arbitration proceedings benefit from the ICC’s Dispute Resolution Services case management digital platform, ICC Case Connect.

According to our system records, the following party representatives have connected to ICC Case Connect:

- Pooja Dadoo (on behalf of Claimant)
- Malika Nanduru (on behalf of Claimant)
- Filip Boras (on behalf of Respondents)
- Markus Schwaiger (on behalf of Respondents)
- Paula Kampits (on behalf of Respondents)
- Stephanie Rohmann (on behalf of Respondents)

Unless otherwise informed, we understand that the above named individuals are authorised to receive correspondence addressed to the parties in this arbitration and as such all future correspondence from the Secretariat will be sent to the parties by Case Connect only.

Party representatives who have not yet connected to Case Connect are encouraged to do so promptly via this link [ICC Case Connect](#). Please contact the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for assistance and technical support.

Yours faithfully,



Loïc Le Dû Högberg
Deputy Counsel
Secretariat of the ICC International Court of Arbitration

encl. - Case Information
 - Financial Table

Enclosures available via ICC Case Connect:
- Respondents' Answer dated 4 August 2025